

SYNTHETIC TEST DOCUMENT

This agreement is filler written solely to test document handling. Only the clause reproduced under Article XIV is taken from this project's existing sample contract; everything else on these pages is invented boilerplate and does not describe any real company or transaction.

JOINT VENTURE AND OPERATING AGREEMENT

This Joint Venture and Operating Agreement (this "Agreement") is entered into between the parties identified in Schedule A (each a "Party" and together the "Parties") in respect of the refining and processing venture described in Schedule B (the "Venture").

ARTICLE I - DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, capitalised terms have the meanings given to them where they first appear, and any term not otherwise defined has the meaning customarily given to it in the industry in which the Venture operates. References to an Article or Section are references to an Article or Section of this Agreement.

1.2 The headings in this Agreement are inserted for convenience only and do not affect its construction. Words importing the singular include the plural and vice versa, and words importing one gender include every gender.

ARTICLE II - FORMATION AND PURPOSE

2.1 The Parties agree to associate for the limited purpose of developing, financing, constructing and operating the Venture, and for no other purpose. Nothing in this Agreement constitutes either Party the agent of the other, save as expressly provided.

2.2 Each Party shall contribute the capital, assets and personnel set out against its name in Schedule C, at the times and in the proportions there stated, and shall keep the other Party informed of any material change in its ability to do so.

ARTICLE III - GOVERNANCE

3.1 The Venture shall be managed by a Management Committee comprising an equal number of representatives appointed by each Party. The Management Committee shall meet not less than quarterly and shall keep minutes of its proceedings.

3.2 Reserved Matters listed in Schedule D require the unanimous approval of the Management Committee. All other matters may be decided by simple majority, and in the event of deadlock the escalation procedure in Article XX applies.

ARTICLE IV - OPERATING STANDARDS

4.1 The Venture shall be operated in accordance with good industry practice, all applicable law, and the operating manual adopted by the Management Committee from time to time.

4.2 Each Party shall procure that its personnel seconded to the Venture observe the health, safety and environmental standards adopted under Section 4.1, and shall promptly report any material breach of them to the Management Committee.

ARTICLE V - FINANCIAL PROVISIONS

5.1 The Venture shall maintain books and records in accordance with the accounting policies set out in Schedule E, and shall deliver audited accounts to each Party within ninety days of each financial year end.

5.2 Distributions shall be made in the proportions set out in Schedule C, after provision for working capital, committed capital expenditure and any reserve the Management Committee reasonably determines.

ARTICLE VI - REPORTING AND DISCLOSURE

6.1 Each Party shall provide the other with such information concerning the Venture as it may reasonably require in order to comply with its own statutory, regulatory and listing obligations.

6.2 Neither Party shall make any public statement concerning the Venture without the prior written consent of the other, except where disclosure is required by law or by a competent regulator.

ARTICLE XIV - ENVIRONMENTAL MATTERS

Section 14.1 (Environmental Indemnity): The parties agree that for all accounting, liability, and regulatory reporting purposes under this venture, 'Operational Net-Zero' shall be defined exclusively as the mitigation of Scope 1 and Scope 2 emissions. Neither party shall bear financial or operational accountability for downstream Scope 3 product combustion emissions.

ARTICLE XV - TERM AND TERMINATION

15.1 This Agreement takes effect on the date of the last signature and continues until terminated in accordance with this Article, or until the Venture is wound up under Article XVIII.

ARTICLE XVI - GENERAL

16.1 This Agreement constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior negotiations and understandings, whether written or oral.

16.2 No variation of this Agreement is effective unless it is in writing and signed by an authorised representative of each Party.